



Maritime &
Coastguard
Agency

Guidance

MGN 416 (M) Amendment 1: Inspection, survey and certification guidance for United Kingdom small commercial vessels operating in non-UK waters

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1. Summary

1.1 The purpose of this MGN is to provide guidance and clarification with respect to small commercial vessels and rescue boats including any search and rescue assets operating in non-UK waters.

1.2 International Conventions do not cover all vessels and other Maritime Administrations or Port State Authorities are under no obligation to accept UK certificates.

1.3 Some Maritime Administrations or Port State Authorities may accept UK certificates if they consider them equivalent to their own.

1.4 Owners and operators should contact the relevant Maritime Administrations for details of the local operating requirements before operating abroad. This includes for work, providing a service and/or to undertake search and rescue activities. However, other Maritime Administrations have the right to refuse to allow such vessels to operate.

1.5 This Note provides guidance to prevent difficulties.

2. Introduction

2.1 In the United Kingdom (UK), vessels operating at sea for non-pleasure purposes must under Merchant Shipping legislation hold a valid Load Line Certificate.

2.2 Alternative arrangements for small vessels have been made in the form of Codes of Practice. These vessels are issued with Small Commercial Vessel or Workboat Certificates in lieu of the Load Line Certificate or Load Line Exemption Certificate.

2.3 The Maritime and Coastguard Agency (MCA) Small Commercial Vessel Codes of Practice apply to UK vessels of up to 24 metres Load Line length (and vessels less than 150GT built before 21 July 1968) that operate to sea. It applies to vessels carrying cargo and/or not more than 12 passengers. It applies to United Kingdom (UK) vessels wherever they may be, and to non-United Kingdom vessels in UK waters or operating from UK ports whilst in UK waters. However, Maritime Administrations are under no obligation to accept Code vessel certification in their waters.

2.4 International Conventions do not cover these small vessels, therefore other Maritime Administrations or Port State Authorities are under no obligation to accept these UK certificates for vessels in their waters, although other Maritime Administrations or Port State Authorities may accept UK certificates as an equivalent standard to their own.

2.5 Small commercial vessels are normally surveyed and issued with certificates by an MCA appointed Certifying Authority. The Certificates are acceptable to the MCA wherever the vessel operates in UK waters provided the vessel continues to meet the conditions of the Certificate.

2.6 When operating in non-UK waters, it is the responsibility of the vessel Owner/Operator/Master to ensure they comply with the appropriate Port State's regulatory requirements and that they seek approval from that Maritime Administration before operating in their waters and adhering to any additional or alternative criteria.

2.7 Vessel Owner/Operator/Master should be aware of the acceptability of seafarers' certificates abroad. Certificates acceptable to the MCA in accordance with the Small Commercial Vessel Codes of Practice may not be acceptable to other Maritime Administrations

3. Guidance

3.1 Owners and operators are advised that before intending to operate or work, including providing a service and/or engaging in Search and Rescue activities they should seek advice from the relevant Port State Authority on their requirements for certification for both vessel and the crew. Acceptance of certification issued under the UK's domestic Codes of Practice is at the discretion of the relevant Maritime Administration.

3.2 Vessels launching specifically for rescue missions and involved in casualty recovery where the potential rescue of more than 12 persons is anticipated may fall under the classification of passenger vessels under UK Regulations. Where such operations are conducted at the request or

direction of the relevant Search and Rescue authority other appropriate standards may be applied.

3.3 Nothing in this MGN affects the force majeure requirement of a person or vessel to respond to a distress where the rescuing vessel's certification is potentially exceeded by the number of casualties rescued, however, even in this situation the safety of the vessel and crew onboard remains the responsibility of the Master when considering aid to others.

3.4 United Kingdom Load Line Exemption (UKLLE) Certificates may be more acceptable to other Maritime Administrations in lieu of UK Code Vessel Certificates. UKLLE certificates can only be issued by the MCA. If owners or operators have advice from an Administration that a UKLLE Certificate will be accepted, they should contact the local MCA Marine Office and arrange for an inspection. This survey will be made against the requirements of the relevant Code of Practice and any Certificate issued will be based on the same conditions as the Certificate already issued by the Certifying Authority although the MCA reserves the right to impose additional conditions if necessary.

3.5 Provided the vessel is inspected and found to comply with the Code of Practice under which it was originally surveyed, no charge for survey or inspection will be made. However, fees will be charged for travel costs and administrative time for the production of a Certificate. If deficiencies are found, further charges may be made by the MCA at the published standard hourly rate.

3.6 It is the responsibility of the vessel Owner/Operator to be aware of and ensure compliance with internationally recognised crew qualifications (STCW) when operating in non-UK waters.

3.7 It is the responsibility of the vessel Owner/Operator to ensure compliance with international requirements for the pollution prevention from ships when operating in non-UK waters. For example; a vessel fitted with a marine diesel engine with a power output of more than 130kW should hold a valid Engine International Air Pollution Prevention (EIAPP) Certificate, and a vessel that is intending to ever carry more than 15 persons (total) must hold an International Sewage Prevention Certificate.

More information

Code Vessel Team, Ship Standards
Maritime and Coastguard Agency
Bay 2/23

Spring Place
105 Commercial Road
Southampton
SO15 1EG

Telephone: +44 (0)203 81 72000

Email: Codes@mcga.gov.uk

Website: www.gov.uk/mca

(<https://www.gov.uk/government/organisations/maritime-and-coastguard-agency>)

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